

CONSTITUTION AND BYLAWS  
OF THE CHELMSFORD FEDERATION OF TEACHERS LOCAL 3569  
AFT MA AFL-CIO  
ADOPTED MAY 1. 1976 AMENDED July 21, 2010

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#### ARTICLE I - NAME

This organization shall be known as the Chelmsford Federation of Teachers, Local No. 3569.

## ARTICLE II- OBJECTIVES

The purpose of this organization shall be:

Sec 1. to improve the lives of our members and their families;

Sec 2. to give voice to their legitimate professional, economic, and social aspirations;

Sec 3. to strengthen the institutions in which we work;

Sec 4. to improve the quality of the services we provide;

Sec 5. to bring together all members to assist and support one another;

Sec 6. and to promote democracy, human rights, and freedom in our union, in our nation, and throughout the world.

## ARTICLE III - MEMBERSHIP

Sec 1. Certified employees of the Chelmsford Public School District including teachers, librarians, counselors, coaches, administrative interns, team leaders, department heads, program facilitators, specialists, nurses, and professional support personnel are eligible for membership. Please check against contract language

Sec 2. Supervisory personnel such as principals and deans, shall not obtain membership. Members who are promoted to the supervisory positions such as the aforementioned, automatically are removed from membership on the effective date of the promotion.

Sec 3. Teachers and other school employees in public or private institutions outside the jurisdiction of this local may be admitted to membership until such time as a local may be chartered in their jurisdiction.

Sec 4. No discrimination shall ever be shown toward individual members or applicants for membership because of race, gender, sexual orientation, religious faith, or political activities or belief.

Sec 5. A member may be expelled for acts detrimental to the Federation upon presentation of written charges signed by at least 1/4 the total membership and approved by at least 3/4 the executive Council. The member shall have the right to appeal the decision to the membership at the following membership meeting and shall be reinstated with full rights if a majority of the members present vote to reinstate.

Sec 6. Any member who fails to pay dues upon their expiration or within a grace period of one quarter shall be dropped from the membership roles and their names removed from the records at the national union office. The member may be reinstated upon the payment of back dues not to exceed six months.

## ARTICLE IV - OFFICERS

Sec 1. The following officers shall be elected biennially by this Federation:

a. President

b. Executive Vice President

c. Bargaining Unit Vice Presidents - one from each bargaining unit represented by the union (for example, educational support staff, teachers and nurses, and town librarians)

d. Treasurer

e. Secretary

Sec 2. The election of officers will be conducted by the election committee according to the

conditions set out in Article 11, Section 5.

Sec 3. Newly-elected officers shall assume their responsibilities as of July 1<sup>st</sup> of the year elected. The period from the election through June 30<sup>th</sup> shall be used to provide a smooth transition between the

incoming and outgoing officer.

Sec 4. Vacancies in any office shall be filled by an election of the membership unless such vacancy occurs during the months of July and August or within 30 days prior to the expiration of the officer's term. In such case, the vacancy shall be filled by the Executive Board.

#### ARTICLE V - COMMITTEES

Sec 1. The following standing/special committees may be active in this Federation: (1) Communications/Public Relations Committee (2) Professional Development Committee (3) Grievance Committee (4) Sick Bank Committee (5) Election Committee (6) Negotiations Committee (7) Action Committee

Sec 2. The executive board will solicit and select representatives for each standing and special committee from federation members.

Sec 3. Members of each committee shall select the chairperson of that committee.

Sec 4. The president may create special committees with the approval of the Executive Board.

#### ARTICLE VI - REPRESENTATIVE COUNCIL

Sec 1. The Representative Council will be made up of representatives from each building who shall represent all bargaining unit members of that building and the members of the executive board.

Sec 2. Each school will have one elected representative for each thirty members or fraction thereof. Each representative shall be elected for a term biennially.

Sec 3. The normal election of the Representative Council shall be supervised by the Election Committee.

Sec 4. Newly-elected representatives shall assume their responsibilities as of July 1<sup>st</sup> of the year elected. The period from the election through June 30<sup>th</sup> shall be used to provide a smooth transition between the incoming and outgoing representatives.

Sec 5. Vacancies shall be filled by an election of the membership unless such vacancy occurs during the months of July and August or within 30 days prior to the expiration of the representative's term. In such case, the vacancy shall be filled by the Executive Board.

Sec 6. Training for building representatives will be provided at the start of each school year.

#### ARTICLE VII - THE EXECUTIVE BOARD

Sec 1. The Executive Board of this Federation shall consist of all elected officers.

Sec 2. The Executive Board shall administer the policy of this Federation as set by the membership at regular meetings. It shall have the power to act for the good of the Federation in emergency situations where the policy cannot be set by the membership.

Sec 3. The chairman of the Executive Board shall be the President of the Federation.

Sec 4. The time and place of the Executive Board meetings shall be set by the Executive Board and announced at the annual fall meeting. The Executive Board shall meet at least once a month throughout the school year.

Sec 5. The Executive Board shall have the power to employ all personnel including an executive

secretary, clerical help, and other persons on full or part-time basis as may be determined by needs and finances of the Federation.

Sec 6. The Executive Board shall have the power to make contracts and incur liabilities which may be appropriate to enable it to accomplish any or all of its purposes.

Sec 7. The Executive Board shall report its activities at each regular meeting of the membership.

Sec 8. Decisions to expend CFT monies for charities and scholarships will be made by the Executive Board based on a budget set by the treasurer.

## ARTICLE VIII - AFFILIATIONS

Sec 1. This Federation shall maintain affiliation with and whenever possible send delegates to the following organizations:

a. The American Federation of Teachers - all delegates and alternates to the National Convention of the AFT shall be elected by majority vote at the Spring membership meeting. Announcement of the election shall be made at the previous membership meeting and each member shall be notified at least 15 days prior to the election. The President and Secretary shall certify the election and forward the credentials of all elected delegates and alternates to the National Office as soon as possible but not later than ten days before the convening of the National Convention.

b. The AFT Massachusetts delegates shall be elected at least one month before the State Convention at a regular membership meeting.

c. The Merrimack Valley Central Labor Council delegates shall be elected at the regular biennial election of officers. Vacancies may be filled by appointment of the Executive Board.

d. The Mass. State Labor Council delegates shall be elected at least one month before the state labor convention at a regular membership meeting.

Sec 2. All delegates shall make written reports to the Executive Board on meetings attended.

Sec 3. Every reasonable effort shall be made by this Federation to pay the legitimate expenses of delegates to meetings and conventions of affiliated organizations.

Sec 4. The Federation, to the best of its ability, shall be active in the affairs of affiliated organizations.

Sec 5. Delegates to affiliated organizations shall meet the same requirements as officers of this local. (Must be a member in good standing of this Federation for at least one year.)

## ARTICLE IX - DUTIES OF OFFICERS

Sec 1. The duties of the President shall be:

a. To preside at all meetings of the Federation and of the Executive Board.

b. To be an ex-officio member of all committees

c. To sign all necessary papers and documents, and represent the local when and where necessary.

d. To make a report to the membership at least once each year

summarizing the accomplishments of the Federation and outlining plans for the next year.

e. To provide Executive Board and Rep. Council members an agenda with the date and location of the meeting and a copy of the Secretary's minutes from the previous month's meeting one week prior to each scheduled meeting.

Sec 2. The duties of the Executive Vice President shall be:

a. To perform all duties of the President in the absence of that Officer

b. To be the chairperson of the Communications/Public Relations Committee.

c. To be an active member of the Grievance Committee and the liaison to the Executive Board.

Sec 3. Bargaining Unit Vice President shall serve as a liaison between his or her chapter and the union. He or she will support the building representatives, especially in the grievance process.

Sec 4. The duties of the Secretary shall be:

a. To issue all notices.

- b. To answer all correspondence at the direction of the Executive Board.
- c. To report outside correspondence to the President and the Executive Board.
- d. To be the custodian of the seal and charter of the Federation.
- e. To record the minutes of the Executive Board and of general membership meetings.
- f. Provide building reps with cards and stamps to acknowledge illness or injury to union members in the building.
- g. To send flowers or make a charitable donation for the death of a union member, the death of an immediate family member, or serious or extended illness of a Union member.

Sec 5. The duties of the Treasurer shall be:

- a. To receive, record, and deposit in the name of the Federation all monies from dues and all other sources.
- b. To issue receipts and delinquent notices.
- c. To forward all per capita dues and current membership lists to the National Office of the American Federation of Teachers and to other affiliated organizations to keep this Federation in good standing at all times. Special care shall be taken to see that per capita tax through June 30th is sent to the National Office no later than 15 days prior to the opening date of the National convention to make sure delegates from this Federation may be seated.
- d. To prepare an annual budget and present a written report to all members once each year.
- e. To keep adequate records and to make them available at all times for the Executive Board.
- f. To pay all bills authorized by the adopted budget, retaining voucher or invoice for same. Expenses not authorized in the budget must be presented to the Executive Council for authorization.
- g. To keep the membership roll. h. To oversee an annual audit process.

## ARTICLE X DUTIES OF REPRESENTATIVES

Sec 1. Each representative shall act as the liaison between members in their building and the Executive Board, and shall communicate information to their members as needed.

Sec 2. Representatives shall be the first resource for all employees covered by our contracts in need of union support (e.g.: benefits, contract clarification, filing grievances, etc.)

Sec 3. During the Negotiating Process, if an Action Committee is formed, at least one representative from each building, by mutual decision of representatives in that building, shall be an ex-officio member of the Action Committee. This building representative shall inform other representatives in his/her building of approved actions by the Action Committee, so that all representatives may be fully informed. All representatives shall then work together to implement said actions within their buildings.

Sec 4. All representatives shall work in support of the Election Committee, and may run elections in their building if they are not on that building ballot.

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## ARTICLE XI - DUTIES OF COMMITTEES

Sec 1. Communications/Public Relations Committee: This committee shall publicize information about teachers and their working conditions and their efforts on behalf of the town.

- a. Every effort shall be made by this committee to make use of other sources of publicity, i.e. newspapers, radio, and television, etc.

b. A member of this committee will attend the open school committee hearings. As needed, that member may use the open microphone portion of the meeting to express the union's view or achievements to the committee and the town.

Sec 2. Professional Development Committee: This committee will work with administration to determine the professional development offerings for the district. The committee will be made up of members from every level in the district.

Sec 3. Grievance Committee: This committee shall act on all grievances submitted by employees covered by the contract.

a. The Grievance Committee will be responsible for working with the building representatives and the unit vice presidents to fill out and administer grievances on behalf of these employees.

b. The committee will work with the unit vice presidents and the building representatives to make them familiar with the contract terms to facilitate filling out grievances.

c. The committee shall maintain a record for all grievances and a member of the committee shall report on grievance activity at the monthly building representative meeting.

Sec 4. Sick Bank Committee: The Sick Bank Committee shall consist of three members who work with Administration to review and approve sick bank requests.

Sec 5. Election Committee: This committee will perform the work necessary to hold all union elections.

a. Anyone running for elected office must have been a member of the union for at least one year.

b. The committee will provide notice to each member at least fifteen (15) days prior to any election that nominations will be in order.

c. Nominations shall be accompanied by petitions containing at least (10) signatures of members and the consent of the nominee.

d. Nominations for officers shall be made at the regular spring membership meeting. Nominations for building reps may be made at that meeting or at a building meeting.

e. Ballots shall be prepared and available from each building representative on the day selected for voting. Each building representative will have a ballot box and a list of bargaining unit members for his or her building.

f. The box and voting list will be under the control of the building representatives throughout the voting day. The voting day will commence at least 30 minutes before the start of the school day and end 15 minutes after the end of the school day.

g. Votes will be counted in a common, public location after voting has ended and will be announced by e-mail within 48 hours.

h. The candidate receiving a plurality of the votes cast shall be declared elected, except for the president, who must receive a majority. If necessary, a run-off election will be held for the two candidates receiving the most votes in the first election.

i. Election by secret ballot is not necessary if candidates are unopposed. In this case, write-ins are not permitted providing that the conditions in Article XI,

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Section 5, subsections a) through c) have been met.

Sec 6. Negotiations Committee: This committee shall prepare and substantiate salary and other contract proposals with input from the membership. It shall present these proposals to the membership and then shall negotiate these proposals with the employer.

a. The Teachers' Negotiations committee will be made up of the Executive President, 2 members each from the high school, middle school, and elementary school levels, a member representing health care professionals, and a member representing specialists.

b. The Librarian and ESP Bargaining Unit Vice-Presidents will negotiate their unit's contracts with up to six additional team members.

Sec 7. Action Committee: This committee shall:

a. Formulate action plans to support the negotiations team during contract negotiations.

b. These plans shall be reviewed for approval by the Executive Board. The Executive Board shall respond within 48 hours and make to every effort to make a timely decision on the plans.

c. The committee will then work with building representatives to coordinate these actions.

## ARTICLE XII - MEETINGS

Sec 1. The time and place of meetings shall be on the regularly scheduled dates of meetings in November and March. Notice for such meetings shall be posted for members at least 5 school days in advance.

Sec 2. There shall be at least 2 meetings per year.

Sec 3. A quorum shall consist of 10 percent of the total membership.

## ARTICLE XIII - FINANCE

Sec 1. Dues shall be a combination of affiliation dues and local dues sufficient to meet the union's obligations. Local dues will increase at the same rate as teachers' salaries based on the contract. Any other change in dues must be approved by a majority vote of members present at a general meeting, providing notice of the contemplated dues increase has been communicated at least 15 days prior to that meeting via email to all members who have provided an address.

Sec 2. Additional finances may be obtained by various fund raising activities.

## ARTICLE XIV - RULES OF ORDER

Roberts Rules of Order, Revised, shall govern in all cases not covered by this constitution or the By-laws of this local. The Roberts Rules of Order shall be interpreted by the Parliamentarian, who shall be appointed by the Executive Board.

## ARTICLE XV - AMENDMENT

This Constitution and the by-laws thereof may be changed or amended at any regular membership meeting by a two-thirds (2/3) vote of the members present, provided that a copy of the proposed amendment has been presented to all members at least thirty calendar days before the vote on the amendment is taken.

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## ARTICLE XVI - AVAILABILITY OF CONSTITUTION

Sec 1. Three copies of this Constitution and all future amendments shall be submitted to the National Office of the American Federation of Teachers.

Sec 2. Copies shall be made available to other affiliated organizations upon request.

Sec 3. Copies shall be available for any members of this Federation upon request to the Secretary.

## ARTICLE I - DUES

Sec 1. Members who work less than full time shall pay lower total dues amounts if their earnings fall below the amounts designated by AFT for 1/2, 1/4, or 1/8 dues.

Sec 2. The dues year shall be from July 1 through June 30. Sec 3. Dues may be paid through payroll deduction, or directly to the Treasurer.

## ARTICLE II - SALARIES

The officers, members of the Negotiating Team and the Grievance Board shall receive a salary. The treasurer will maintain CFT Salary Guidelines which will be made available to any member upon request.

The Constitution and By-laws were adopted \_\_\_\_\_, 20\_\_

\_\_\_\_\_  
Signed: \_\_\_\_\_ (Name of Local) (President)

Attest \_\_\_\_\_ (Seal) (Secretary) 04160

(Secretary)